







PROJECT MANUAL
FOR
Zilber Industrial 3 at Lakeview Corporate Park

Prepared for:

TI Investors of Lakeview Nitto Parcel LLC

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MILWAUKEE, WI 53203

ENGINEER:
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PEG #644.00

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GENERAL CONTRACT

FOR ZILBER INDUSTRIAL 3 AT LAKEVIEW CORPORATE PARK, VILLAGE OF PLEASANT PRAIRIE, WI

(PUBLIC WATERMAIN INFRASTRUCTURE)

THIS AGREEMENT is made this _____ day of _____, 2026 by and between _____ hereinafter called the "Contractor" and TI Investors of Lakeview Nitto Parcel LLC hereinafter called the "Owner".

WITNESSETH, the Contractor and the Owner, for good and valuable consideration, the receipt of which is hereby acknowledged, and for the conditions stated herein, hereby agree as follows:

ARTICLE I, SCOPE OF WORK. The Contractor shall perform all work described in this Agreement, including its component parts referenced below, and shall provide or furnish all necessary labor, materials, tools, equipment, and the like, and all utility and transportation services required to complete in a workmanlike manner, and within the timeframe outlined in the Standard Contract Terms and Conditions, all the work required for the utility construction at Zilber 3 at Lakeview Corporate Park and located in the Village of Pleasant Prairie, WI ("Project"). The utility construction work shall include, but not be limited to stripping and replacing handling utility spoil, restoration, watermain construction, replacement of curb and gutter, concrete and concrete pavement replacement placed in strict accordance with the plans and specifications, including any and all addenda, which plans and specifications are made a part of this Agreement, and in strict compliance with the Contractor's proposal and the other contract documents therein referenced ("Work"), which are incorporated into this Agreement and the other documents constituting a part thereof.

ARTICLE II, CONTRACT PAYMENTS. The Owner shall pay to the Contractor for the performance of this Agreement, subject to any additions or deductions provided herein, the lump sum amount set below for each type or class of work or the amount of the general proposal.

_____ ($_____).
(See proposal form for Schedule of Prices, if any)

The Contractor, in consideration of the payments hereinafter provided, for himself, his heirs, executors and administrator, or for itself and its successors, as the case may be, hereby covenants and agrees to and with the Owner to well and truly execute and perform the work and furnish the materials, for the price, and within the time, and according to the Contract Documents.

Payments are to be made to the Contractor in accordance with and subject to the provisions embodied in the documents made a part of this Agreement. The Contract Price shall include any and all taxes of any sort that may be due Contractor or for which Contractor may be responsible.

ARTICLE III, COMPONENT PARTS OF THIS AGREEMENT. This Agreement consists of the following component parts, all of which are as fully made part of this Agreement as if herein set out verbatim, or, if not attached, as if hereto attached:

1. Standard Contract Terms and Conditions;
2. Village of Pleasant Prairie Standard Specifications (most recent edition);
3. Public Watermain Infrastructure Plans for Zilber Industrial 3 @ Lakeview Corporate Park dated November 3, 2026;
4. This instrument; and
5. Contractor's Proposal.

In the event any provision in any of the above component parts of this Agreement conflict with any provision in any other component parts, the provision in the components first enumerated above shall govern over any other component part which follows it numerically, except as may be specifically stated.

ARTICLE IV, DISPUTES. In the event of any dispute regarding this Agreement, including any of the component parts, the parties shall use all reasonable efforts to resolve the dispute by negotiation. Absent agreement following such efforts, either party may file an action in circuit court for the county in which the Project is situated. In such event, the attorney's fees and all other costs of litigation incurred by the prevailing party shall be paid by the other party.

Signatures are on Following Page

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed the day and year first above written.

CONTRACTOR:

Name of Company:

By:_____ _____
(Authorized Signer) TITLE

Print:_____

OWNER: TI Investors of Lakeview Nitto Parcel LLC

By:_____ Director of Construction
Jason Lueders TITLE

ATTEST:

_____

_____
(Name and Title)

STANDARD CONTRACT TERMS AND CONDITIONS

1. Project Contract. Owner and Contractor agree that these Standard Contract Terms and Conditions constitute standard terms and conditions of, and are incorporated into, the Project contract by a separate Agreement identifying the Project (the "**Agreement**").

2. Definitions. Unless otherwise defined herein, all capitalized terms shall have the meanings given to them in the Agreement.

3. Compliance with Laws. Contractor shall strictly abide by and comply with all laws, statutes, ordinances, codes, regulations, instructions, permits and governmental approvals applicable to the Work.

4. Performance of the Work. Contractor shall furnish all supervision, materials and equipment, except as otherwise provided in the Agreement, and shall perform all labor required for the completion of the Work to the satisfaction of the Owner, and in strict accordance with all provisions of the Agreement and the Plans and Specifications.

5. Completion of the Work. The Work shall be considered substantially completed as reasonably determined by Owner on or before July 31, 2026 (the date of "**Substantial Completion**"). "**Final Completion**" shall be achieved on the earlier of (i) thirty (30) days after Substantial Completion or (ii) such date as required in order not to delay the Owner or other contractors in the performance of their work on the Project. Contractor shall be responsible to Owner for any and all direct or indirect damages (including, but not limited to, consequential damages) incurred as the result of Contractor's failure to complete the Work within the Contract Time. All costs, including attorney's fees, incurred by Owner in enforcing the Agreement (including defending any claim by Contractor) shall be borne solely by Contractor.

5a. Liquidated Damages. Owner and Contractor recognize that time is of the essence of this Agreement and that Owner will suffer financial loss if the work is not completed within the times specified herein above, plus any extensions thereof allowed in accordance with this Agreement. The Owner and Contractor also recognize the delays, expense and difficulties involved in proving the actual loss suffered by Owner if the work is not completed on time. Accordingly, instead of requiring any such proof, Owner and Contractor agree that as liquidated damages for delay (but not as a penalty) Contractor shall pay Owner Five Hundred dollars ($500) for each day that expires after the time specified above as the time for substantial completion until the work is substantially complete. After substantial completion, if Contractor shall neglect, refuse or fail to complete the remaining Work within the time specified herein for completion and readiness for final payment or any proper extension thereof granted by Owner, Contractor shall pay Owner Five Hundred dollars ($500) for each day that expires after the time specified for completion and readiness for final payment.

6. Completion of the Work by Owner. Should Contractor fail or neglect to proceed diligently, timely, or in a competent manner, or should Contractor delay, interfere with, or jeopardize the timely or satisfactory Substantial Completion or Final Completion of the Work, then, and in such event, Owner, in its sole discretion, reserves

the right, after giving forty-eight (48) hour notice to Contractor (written or oral), to take over the Work and complete such Work at the cost and expenses of Contractor, without prejudice to Owner's other rights or remedies for any loss or damages sustained, and in the event of such takeover, Contractor agrees that no material, machine, or tools belonging to Contractor shall be removed from the job until completion of the Work. Failure of the Owner to take over the Work shall not be deemed a waiver of Owner's rights to do so.

7. Permits. Contractor shall obtain and pay for all permits, approvals, clearances and licenses required to perform the Work.

8. Indemnification. Contractor shall assume full responsibility for (his/her/its) employees, officers, agents, contractors and business invitees. Except to the extent that any such injury or damage is the direct result of the intentional misconduct of the Owner, Contractor hereby agrees to indemnify, defend and save harmless the Owner, and Owner's agents, contractors and employees against all liability, obligations, claims, loss and expense arising from personal injury or property damage (i) caused or created by the negligent act, error or omission of the Contractor and its employees, agents, subcontractors and consultants (ii) arising out of the Work, (iii) arising out of a breach of the Agreement by the Contractor, and/or (iv) arising out of injuries suffered or allegedly suffered by employees or agents of the Contractor, or its subcontractors and consultants, in the performance of the Work (and such indemnification by the Contractor shall not be limited by any applicable workman's compensation limitations).

9. Insurance. Contractor shall furnish the following insurance in the following or minimum legal limits, whichever is greater: (i) Statutory Worker's Compensation Insurance – Statutory limit, if required by law; (ii) Comprehensive General Liability Insurance: (a) Each Occurrence in the amount of One Million Dollars ($1,000,000.00); (b) general aggregate (which shall apply only to this Project) in the amount of One Million Dollars ($1,000,000.00); and (c) Products – Completed Operations Aggregate (which shall apply only to this Project) in the amount of One Million Dollars ($1,000,000.00) (the forgoing commercial general liability coverage shall provide that it is primary and non-contributory to the Owner's commercial general liability coverage on the Project); (iii) Automobile Liability Insurance – combined single limit of One Million and 00/100 Dollars ($1,000,000.00); and (iv) Umbrella/excess liability: (a) Each Occurrence in the amount of Five Million Dollars ($5,000,000); and (b) Aggregate in the amount of Five Million Dollars ($5,000,000). A Certificate evidencing the insurance coverage required by the Agreement must be furnished before performing any Work. The Owner, Village of Pleasant Prairie, its agents, employees and officials shall be named as additional insured under the coverages required in subsections (i), (ii) and (iii) above. The certificate of insurance provided to the Owner shall provide that not less than thirty (30) days written notice shall be given to the Owner prior to any change or cancellation and shall name Contractor's insurance as primary and non-contributory and waiving any rights of subrogation as to the Owner and Village of Pleasant Prairie. If any Work to be performed under the Agreement is further sublet by the Contractor, which sublet shall be subject to Owner's express written consent, the Contractor shall require its subcontractors to provide the same insurances coverages as are required of the Contractor under the Agreement.

10. Payment. Based upon Applications for Payment submitted to the Owner by the Contractor, the Owner shall, conditioned upon the following, make progress payments on account of the Contract Sum to the Contractor as provided below:

(a) Partial payments for actual Work performed under the Agreement will be made by the Owner every sixty (60) days upon submittal of a proper Application of Payment by Contractor. Such Payment shall equal the value of the Work done by Contractor according to the Owner's estimate at applicable unit prices or percentage of total completion, whichever is applicable, less the sum of previous payments and less a percentage equal to five percent (5%) of the Work if required by Owner (which retainage shall be released to Contractor upon Final Completion of the Project, or earlier as determined by Owner); provided, however, if Contractor is indebted to Owner or anyone else for cash advances, supplies, materials, equipment, rental or other property charges against the Work, the amount of such indebtedness may be deducted from any payment or payments made under this provision.

(b) Each Application for Payment shall be based upon the actual invoices submitted by the Contractor and its material suppliers, if any, for Work actually in place at the Project as of the end of the month to which the Application for Payment applies.

(c) In addition to the foregoing, each Application for Payment shall be accompanied by the following, all in form and substance reasonably satisfactory to the Owner: (a) a current sworn statement from the Contractor setting forth all subcontractors and materialmen with whom the Contractor has subcontracted, if any, (b) the amount requested for any subcontractor or materialman in the Application for Payment, (c) the amount to be paid to the Contractor and its subcontractors and material suppliers from such progress payment, and (d) duly executed full and final lien waivers of all mechanics' and materialmen's liens from the Contractor and each of its subcontractors and material suppliers for all Work the Owner is requested to pay in the current Application for Payment Payment).

11. Changes to the Work. Unless Owner changes the Plans and Specifications of the Work, Contractor shall not deviate from such Plans and Specifications and Work without the prior written consent of Owner. Contractor, however, shall be bound by any changes or alterations made by Owner to the Work or the Plans and Specifications, or in the amount or character of the Work or any part of the Work. Contractor shall not be paid any amount in excess of the Contract Sum unless such payment (or work authorization) has been approved in writing in advance by the Owner.

12. Second Tier Subcontractors. Contractor shall not sublet the Work, either in whole or in part, without prior, express and written consent of Owner. All subcontracts under the Agreement shall be subject to the provisions of the Agreement and Village of Pleasant Prairie ordinance chapter 150.

13. Surveying and Layout. The Owner shall pay for the initial surveying and layout of the Work. Contractor shall be responsible for any required restaking of the Work.

14. Protection of the Work. Contractor shall take all necessary precautions for the protection of the Work and all other public or private property adjacent to the work.

15. Cooperation. Contractor shall cooperate fully with the Owner and other contractors and agents employed on the Project and shall so plan and conduct its Work as not to interfere with the operations of the Owner and its other contractors and agents on the Project. Owner will not be responsible for any delays or interference resulting from the act or operations of other contractors, suppliers or organizations.

16. Safety. Contractor shall be solely responsible for the safety of its employees, agents and contractors. Should Contractor consistently fail to keep its equipment in safe operating condition and/or should Contractor's operation be characterized by abnormally frequent injuries to workers, then at the option of Owner, the Agreement may, upon written notice to Contractor, be canceled and Contractor required to remove immediately all of its equipment and employees from the Project site. Contractor shall meet and comply with all governmental standards for safety applicable to the Project. Contractor shall be expressly and solely responsible to ensure that it and its employees, and or any person that is supervising the Work, complies with all applicable provisions of the Federal Occupational and Safety Health Act, commonly known as OSHA.

17. Warranty; Guaranty. All Work shall be performed in a good and workmanlike manner and with new materials. Contractor herby warrants and guarantees the quality of all Work and materials and shall, for a period of two (2) years beyond conditional acceptance by the Village of Pleasant Prairie, replace or repair, at Contractors' expense, any Work deemed faulty or defective by the Owner or its agents. The foregoing two (2) year warranty period shall not limit any other rights of the Owner under applicable law with respect to faulty or negligent performance of the Work by the Contractor. In addition, the Contractor guarantees that the Work shall be lien free.

(a) The two (2) year period will begin on the date of conditional acceptance by the Village of Pleasant Prairie, along with an official acceptance letter, which will constitute Owner acceptance of the entire system.

18. Clean-Up. Upon completion of any applicable portion of the Work (and at a minimum at the end of each work day with respect to normal Work debris only), upon Substantial Completion of the Work and upon Final Completion of the Work, Contractor shall clean up all refuse and rubbish at the Project site related to the Work, and to remove promptly all excess materials, equipment and the like, that may have been brought on the Project site or erected by Contractor. In the event of the failure of Contractor to do so, Owner may, after giving reasonable written or oral notice, clean up Contractor's Work refuse and rubbish on the Project site at the cost and expense of Contractor. These costs may be deducted from Contractor's payments.

19. Termination. The Owner may, upon written notice, terminate the Agreement, with or without cause, if the Owner determines (in its sole discretion) that the Contractor has not performed its obligations hereunder to the satisfaction of the Owner. In the event the Owner terminates the Agreement, the Contractor shall not be entitled to receive further payment until the Work is finished. If the sum of the costs of finishing the Work, plus the amounts previously paid to the Contractor prior to termination, exceed the Contract Sum, the Contractor shall pay the difference to the Owner upon demand.

20. Miscellaneous. The Agreement shall bind the heirs, executors, administrators, successors and assigns of the parties to the Agreement. It is agreed that the Agreement shall be governed by, construed and enforced in accordance with the laws of the State of Wisconsin without giving effect to its conflict of laws provisions. The Agreement shall constitute the entire agreement between the parties and any prior understanding or representation of any kind preceding the date of the Agreement shall not be binding upon either party except to the extent incorporated in the Agreement. Any modification of the Agreement or additional obligation assumed by either party in connection with the Agreement shall be binding only if evidenced in writing signed by each party or an authorized representative of each party. The titles to the paragraphs of the Agreement are solely for the conveniences of the parties and shall not be used to explain, modify, simplify or aid in the interpretation of the provisions of the Agreement. During the performance of the Agreement, Contractor agrees not to discriminate against any employees because of race, color, creed, sex, national origin or any other protected class. The Contractor shall not assign any of its rights or interests under the Agreement, or any part thereof without the Owner's prior written consent, which may be withheld in the Owner's sole discretion. Owner may, upon reasonable notice to Contractor, assign its interests in the Agreement to a subsidiary or related entity.

21. Contractor's Responsibility. Contractor shall give notice in writing to the applicable and appropriate police and fire departments, ambulance services, school bus service, the proper authorities in charge of streets, gas, electric and other conduits, railroads, utility poles, manholes, catch basins, sewers and all other property that may be affected by the Contractor's operations, at least three (3) working days excluding legal holidays, before commencing the Work. Contractor must obtain all necessary information in regard to existing utilities and shall protect such utilities from injury and shall avoid unnecessary exposure so that they will not cause injury to the public. No representations are made by the Owner, its officers, agents, or employees as to the existence or nature of visible or invisible surface or subsurface difficulties, obstructions, or obstacles, which may be encountered in the course of completing the work covered by the Agreement, whether shown on the plans or not, and the Bid Price for the work covered by this Agreement must cover satisfactory completion thereof on this condition. Contractor must acquaint himself with the condition of the ground on and through which the work is to be done to determine whether any excavation may be in rock, hardpan, quicksand, or soft ground, and the existence and nature of all surface or subsurface difficulties, obstructions or obstacles, whether or not shown on the plans, and should be familiar with all the requirements of the Specifications and the Provisions of the Agreement and plans of the Work.

22. Repair/Replacement Responsibilities. Contractor shall not damage any plant material, signs, monuments, walls or other existing site amenities. If such damage does occur, Contractor shall notify the Owner immediately and shall restore the damaged item to its original condition at Contractor's sole cost and expense.

23. Supplemental Unit Prices. Supplemental unit prices requested on the bid form shall be given and if included in the Agreement, will be used for additions or deductions from the amount of work required under this Agreement. Unit prices shall include all

costs of materials, labor, insurance, overhead, and profit, and will be paid for ordered additional work.

24. Extra, Additional or Omitted Work – Payment The Owner, upon proper action by its governing body, may authorize changes in, additions to, or deductions from the work to be performed or the materials to be furnished pursuant to the provisions of the contract of any other contract document.

Adjustments, if any, in the amounts to be paid to the Contractor by reason of any such change, addition or deduction shall be determined by one or more of the following methods:

(a) By unit prices contained in the Contractor's original bid and incorporated in the construction contract.

(b) By a supplemental schedule of prices contained in the Contractor's original bid and incorporated in the construction contract.

(c) By an acceptable lump sum proposal from the Contractor.

(d) On a cost-plus-limited basis not to exceed a specific limit. A cost-plus-limited basis is defined as the cost of labor, material, and insurance, plus 15 percent of the said cost to cover superintendence, general expense and profit.

(e) No claim for an addition to the contract sum shall be valid unless authorized as aforesaid.

25. Owner's Right to Withhold Certain Amounts and Make Application Thereof. In addition to the payment to be retained by the Owner under the preceding provisions of those General Conditions, the Owner may withhold a sufficient amount of any payment otherwise due the Contractor to cover (a) payments that may be past due or payable for just claims for labor or materials furnished in and above the performance of the work of the project under the contract; (b) for defective work not remedied; and (c) for failure of the Contractor to make proper payments to his subcontractor. The Owner shall disburse and shall have the right to act as agent for the Contractor in disbursing such funds as have been withheld pursuant to this paragraph to the party or parties who are entitled to payment therefrom. The Owner will render to the Contractor a proper accounting of all such funds disbursed on behalf of the Contractor.

Contractor's Proposal

(See Attached)

ZILBER INDUSTRIAL 3 AT LAKEVIEW CORPORATE PARK PROPOSAL FORM

Plan Set Last Revised November 03, 2026

Owner/Developer: TI Investors of Lakeview Nitto Parcel LLC

Engineer: Pinnacle Enginering Group, Attn: Anthony Zanon

CONTRACTOR PROVIDING BID:_____

BID DATE:_____

Water Main - Phase 1

Item	Description	Engineers Estimate Quantity	Unit	Contractor Quantity	Unit	Unit Price	Total Price
1	Mobilization	1	LS				$0.00
2	Tracking pad installation and maintenance	1	EA				$0.00
3	Silt fence installation and removal*	1,720	LF				$0.00
4	Silt fence maintenance*	1,720	LF				$0.00
5	Construction fence, maintenance and removal	80	LF				$0.00
6	Temporary Access (Installation, Maintenance, and Restoration)	1	LS				$0.00
7	Sawcut Existing Pavement	105	LF				$0.00
8	Pavement Removal and Replacement	800	SF				$0.00
9	Curb and Gutter Removal	20	LF				$0.00
10	30" Vertical Face Curb and Gutter	20	LF				$0.00
11	16" PVC AWWA C900 CLASS 150 DR18 (GRANULAR BACKFILL)	37.0	LF				$0.00
12	16" PVC AWWA C900 CLASS 150 DR18 (SPOIL BACKFILL)	739.0	LF				$0.00
13	16" PVC AWWA C900 CLASS 150 DR18 (DIRECTIONAL DRILL)	312.0	LF				$0.00
14	6" PVC AWWA C900 CLASS 150 DR18 (GRANULAR BACKFILL)	10.0	LF				$0.00
15	16" BUTTERFLY VALVES	3	EA				$0.00
16	HYDRANTS	1	EA				$0.00
17	6" GATE VALVES (HYDRANTS)	1	EA				$0.00
17	Connection to Existing Watermain	1	EA				$0.00
19	Turf Restoration (Seeding, Mulching, and Maintenance)	1	LS				$0.00
				SUBTOTAL UTILITY BID ITEMS 1-19:			$0.00